DPDP Act and GDPR: A Plain-Language Explainer

What your data rights are, and what you can do about them

Plain-language explainer: DPDP Act, 2023 and GDPR basics | 22 October 2026

Every time you install an app, fill in a registration form or log in to public Wi-Fi, you hand over pieces of yourself: your name, phone number, photos, location and even your habits. India's Digital Personal Data Protection Act, 2023 (the DPDP Act) says how organisations may use that information and what you can demand from them. This explainer uses plain words and compares the Act with the European Union's GDPR, the law that shaped much of the world's thinking on privacy.

Why this matters for students

Personal data is valuable. Companies use it to target ads, and scammers use it to impersonate people. A leaked phone number brings spam calls and fraud. A copy of an ID card can be misused for fake SIM cards or loan apps. A shared location can reveal where you live and study. Privacy law exists because one student cannot negotiate with a large company as an equal. The Act gives you clear rules to point to when something feels wrong.

Key words

- **Personal data:** any information that identifies you, such as your name, phone number, photo or location.
- **Data Principal:** you, the person the data is about.
- **Data Fiduciary:** the app, college office or company that decides why and how your data is used. "Fiduciary" means it holds your data in trust.
- **Consent:** your clear yes, given freely for a specific purpose, after a plain notice explains it.
- **Data Protection Board of India:** the body that hears complaints and can impose penalties.

What the DPDP Act says

Consent and notice. An organisation normally needs your consent before using your data, and must tell you in clear language what data it wants and why. Consent has to be free, specific, informed, unconditional and unambiguous, and it needs a clear action from you, so a pre-ticked box is not good consent. You can withdraw consent later, and withdrawing must be about as easy as giving it. A few uses do not need consent. These are called legitimate uses, for example responding to a medical emergency.

Your rights. Four rights sit in Sections 11 to 14. You can ask for a summary of the data held about you and who it was shared with (Section 11). You can ask to correct, complete, update or erase your data (Section 12). You can complain to the organisation's grievance contact (Section 13) and, if that fails, to the Data Protection Board. You can also nominate someone to use your rights if you die or cannot act for yourself (Section 14).

Children. Anyone under 18 is a child under the Act. Organisations need verifiable consent from a parent or guardian, and must not track or monitor a child's behaviour or show targeted ads aimed at children.

Your duties. Section 15 asks you not to pretend to be someone else, not to hide important facts when giving information, and not to file false or frivolous complaints.

Penalties. The Board can impose the penalties listed in the Act's Schedule. The highest is up to ₹250 crore for failing to keep reasonable security safeguards. Failing to report a data breach, and breaking the rules on children's data, can each cost up to ₹200 crore.

How to use your rights, step by step

- Find the privacy notice or grievance contact in the app, website or college office.
- Write a short, clear request, for example: "Please delete my account data and stop sending me messages."
- Keep a screenshot or copy and note the date.
- If there is no reply, send one polite reminder.
- If the matter is still unresolved, approach the Data Protection Board of India. Share only what is needed to identify your account.

These rights become enforceable in full once the remaining provisions commence, about 13 May 2027, but you can already ask politely and keep records.

GDPR basics

The General Data Protection Regulation has applied in the European Union since 2018, and it also reaches organisations elsewhere that handle the data of people in the EU. Its principles include lawfulness, fairness and transparency, using data only for a stated purpose, collecting no more than needed, keeping data accurate, keeping it no longer than necessary, and keeping it secure. People can ask for access, correction, erasure (the "right to be forgotten"), restriction of use, a portable copy of their data, and can object to certain processing. Fines can reach €20 million or 4% of worldwide annual turnover, whichever is higher, and breaches must be reported to the authority within 72 hours. Children's consent age is 16, although member states may lower it to 13.

DPDP Act and GDPR side by side

Topic	DPDP Act (India)	GDPR (EU)
Covers	Digital personal data	Personal data, digital or in filing systems
Legal grounds	Consent plus listed legitimate uses	Six grounds, including legitimate interests
Child means	Under 18	Under 16 (states may lower to 13)
Data portability	Not a listed right	Yes
Top penalty	Up to ₹250 crore	€20 million or 4% of turnover
Regulator	Data Protection Board of India	National authorities, coordinated by the EDPB

Four common myths

- **“I clicked agree, so I lost all control.”** Not so. You can withdraw consent, and you can ask for correction or erasure.
- **“Privacy law is only for big companies.”** Many small organisations, including clubs and college offices, also collect personal data, so good habits matter for volunteers too.
- **“Deleting the app deletes my data.”** Not necessarily. The company may still hold it on its servers until you ask for erasure.
- **“AI chatbots are private.”** Treat every prompt as something that may be stored. Use made-up examples, never real IDs or marksheets.

When does it apply?

Legal status in this document: the DPDP Act was passed on 11 August 2023. The DPDP Rules, 2025 were notified on 13 November 2025. Board provisions began at once, consent manager rules follow about 13 November 2026, and the remaining provisions, including the data rights and penalties, are due about 13 May 2027. Good privacy habits are useful today, whatever the date.

What students can do

- Say no to app permissions an app does not need.
- Read the purpose line on every form, and untick pre-ticked boxes.
- Share the least sensitive ID that works.
- Never paste real personal data into an AI chatbot.
- If an app keeps your data, withdraw consent and ask for erasure, then escalate.

This explainer was drafted with AI and checked against several sources. It is awareness material, not legal advice. Check the Act text on the MeitY website before quoting any figure.